

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #4	CCRB Case #: 201508695	☒ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Sat, 10/10/2015 5:36 PM	Location of Incident: West 133rd Street and Lenox Avenue and 32nd Precinct Station-house	Precinct: 32	S.O.L. Expires: 04/10/2017		
Date/Time CV Reported Sat, 10/10/2015 10:55 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 10/10/2015 10:55 PM		

Complainant/Victim	Type	Home Address
1. Civilian #1		
civilian witness 2		
civilian witness 3	Victim	Unknown
civilian witness 4		

Witness(es)	Home Address
civilian witness 5	Unknown

Subject Officer(s)	Shield	TaxID	Command
1. An Officer			032 PCT
2. POF Melanie Paganmerritt	27997	946090	032 PCT
3. POM Kendo Kinsey	12092	938774	032 PCT
4. SGT John Keane	04227	935094	032 PCT
5. SGT Isaias Martinez	828	927792	INT CIS
6. SGT Alfred Gallicchio	01140	921359	032 PCT
7. Officers			032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Stephanie Owens	18639	954203	032 PCT
2. POM Matthew Brennan	12986	956453	032 PCT
3. POF Ellen Usher	12605	902520	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Melanie Paganmerritt	Abuse of Authority: At various locations, PO Melanie Pagan-Merritt detained civilian witness 1 civilian witness 2 and civilian witness 4	A . Substantiated
B . POM Kendo Kinsey	Abuse of Authority: At various locations, PO Kendo Kinsey detained civilian witness 1 civilian witness 2 and civilian witness	B . Substantiated
C . POF Melanie Paganmerritt	Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, PO Melanie Pagan-Merritt frisked civilian witness 2	C . Exonerated
D . POM Kendo Kinsey	Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, PO Kendo Kinsey frisked civilian witness 1 and civilian witness 4	D . Exonerated

Officer(s)	Allegation	Investigator Recommendation
E . POF Melanie Paganmerritt	Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, PO Melanie Pagan-Merritt searched civilian witness 2	E . Exonerated
F . POM Kendo Kinsey	Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, PO Kendo Kinsey searched civilian witness 1 and civilian witness 4	F . Exonerated
G . An Officer	Force: At West 133rd Street and Lenox Avenue in Manhattan, an officer used a chokehold against civilian witness 1	G . Officer(s) Unidentified
H . An Officer	Discourtesy: At West 133rd Street and Lenox Avenue in Manhattan, an officer spoke discourteously to civilian witness 1	H . Officer(s) Unidentified
I . Officers	Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, officers searched the car in which civilian witness 1 , civilian witness 3 , civilian witness 4 and civilian witness 2 were occupants.	I . Exonerated
J . SGT Alfred Gallicchio	Discourtesy: At the 32nd Precinct Stationhouse, Sgt. Alfred Gallicchio spoke discourteously to civilian witness 1	J . Unsubstantiated
K . SGT John Keane	Abuse of Authority: At the 32nd Precinct Stationhouse, Sgt. John Keane threatened civilian witness 2 with a taser.	K . Unsubstantiated
L . SGT Alfred Gallicchio	Abuse of Authority: At the 32nd Precinct Stationhouse, Sgt. Alfred Gallicchio strip-searched civilian witness 2	L . Substantiated
M . SGT John Keane	Abuse of Authority: At the 32nd Precinct Stationhouse, Sgt. John Keane strip-searched civilian witness 2	M . Substantiated
N . SGT Isaias Martinez	Discourtesy: At the 32nd Precinct Stationhouse, Sgt. Isaias Martinez spoke discourteously to civilian witness 1	N . Unsubstantiated

Case Summary

civilian witness 1 filed this complaint with the CCRB on October 10, 2015 via the Call Processing System. A duplicate complaint, Case# [REDACTED] was filed by civilian witness 2 on the same day. Attorneys [REDACTED] and [REDACTED] were consulted with regards to this case. This case is 8 weeks beyond the 90-day benchmark due to various reasons including officer identification issues.

On October 10, 2015 at 6:00 PM, civilian witness 2 was parked partially in the bus stop on West 133rd Street and Lenox Avenue in the Bronx in a car owned by civilian witness 1. Also in the vehicle were civilian witness 1, civilian witness 4, and civilian witness 3. The driver's side window was slightly open and the car engine was off. civilian witness 2 was rolling a tobacco cigarette in the front driver's seat. PO Melanie Pagan-Merritt and PO Kendo Kinsey of the 32nd Precinct pulled up beside civilian witness 1 car in a marked RMP. PO Pagan-Merritt approached on the driver's side, asked civilian witness 2 what he was rolling and informed him he was parked at a bus stop. PO Pagan-Merritt mentioned the smell of marijuana coming from the vehicle and asked if anyone was smoking marijuana in the vehicle. civilian witness 2 showed PO Pagan-Merritt the bag of rolling tobacco and his rolling paper. PO Pagan-Merritt requested his identification. civilian witness 2 and civilian witness 1 argued with PO Pagan-Merritt that they were waiting for a friend and were going to move the car, and asked why they needed to provide ID.

civilian witness 2 provided his identification to PO Pagan-Merritt. PO Kinsey requested civilian witness 1 ID and he provided it. The back passengers, civilian witness 4 and civilian witness 3 were also asked for ID by PO Kinsey. PO Pagan-Merritt asked civilian witness 2 and civilian witness 4 to step out of the car and PO Kinsey asked civilian witness 1 and civilian witness 3 to step out (**Allegations A and B**). civilian witness 2 refused to provide proper ID or step out of the vehicle. The other occupants complied. PO Pagan-Merritt frisked civilian witness 2 and PO Kinsey frisked civilian witness 1 and civilian witness 4 (**Allegations C and D**) and they were all handcuffed. In the course of the frisks, PO Pagan-Merritt allegedly searched civilian witness 2 and PO Kinsey allegedly searched civilian witness 1 and civilian witness 3 (**Allegations E and F**).

Additional units responded to the location including Sgt. John Keane, and Sgt. Alfred Gallicchio, also of the 32nd Precinct. civilian witness 3 continued to refuse to provide ID or step out of the vehicle. Several unidentified officers attempted to remove civilian witness 3 forcibly. An unidentified officer allegedly grabbed civilian witness 3 by the throat (**Allegation G**) and told him to "get the fuck out of the car (**Allegation H**)". A crowd began to form on the sidewalk. civilian witness 3 was removed from the car after a brief struggle and placed in handcuffs.

Sgt. Keane had the four occupants of civilian witness 1 car removed from the location and taken to the 32nd Precinct Stationhouse. The car was searched at the location by unidentified officers and no marijuana or contraband was found (**Allegation I**). PO Pagan-Merritt transported civilian witness 2 and civilian witness 3 to the stationhouse.

At the 32nd Precinct stationhouse, the four civilians were brought to the front desk with PO Kinsey, PO Pagan-Merritt, Sgt. Keane and Sgt. Gallicchio present. civilian witness 1 continued to ask why they were being detained, and what they had done wrong. Sgt. Gallicchio allegedly told civilian witness 1 to "Shut the fuck up (**Allegation J**)."

civilian witness 2 was separated from the other

three and taken to a secluded area in the stationhouse.). Sgt. Keane allegedly pulled out his taser and told **civilian witness 2** that if he resisted the strip search, he would discharge the taser (**Allegation K**). There, Sgt. Keane, PO Kinsey, and Sgt. Gallicchio conducted a strip search (**Allegation L and M**). Two small bags of marijuana were found in **civilian witness 2** socks.

civilian witness 1 and **civilian witness 4** were released at the precinct with no summons. **civilian witness 3** was removed to Manhattan Central Bookings due to an open bench warrant. **civilian witness 2** was issued a summons for the marijuana and a ticket for parking in a bus stop.

civilian witness 1 went to the front desk and asked to file a complaint and was told to wait. He and **civilian witness 4** stayed in the waiting area where they were joined by **civilian witness 2**. They were waiting for at least an hour when Sgt. Isaias Martinez asked what they were doing. **civilian witness 1** told Sgt. Martinez they were there to file a complaint. Sgt. Martinez allegedly told **civilian witness 1** to “Get the fuck out” and told other officers outside not to let him back in (**Allegation N**). Ultimately, **civilian witness 1** and **civilian witness 2** re-entered the stationhouse and filed their written complaints with Sgt. Ralph Aquino.

Video Footage

Video footage was not obtained for the initial stop in this case. None of the nearby storefronts had external surveillance cameras that captured the incident. The complainants did not record the interaction. They acknowledged that there were onlookers whom they could not identify recording the incident on their cell phones but the investigation was unable to identify any witnesses in this case. **civilian witness 4** briefly recorded the interaction at the stationhouse when **civilian witness 1** and **civilian witness 2** and himself were attempting to file a complaint against officers. This footage does not reveal anything regarding the allegations (See Board Review, Video).

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the chokehold allegation.
- None of the civilians involved in this incident filed a Notice of Claim as of February 2, 2016 which was twenty five days past the 90-day filing period.
- A search of the Office Court of Administration database revealed the following (See Board Review, Civilian Criminal History):
 - Between 2005 and 2011, **civilian witness 2** pled guilty to disorderly conduct, harassment in the second degree and menacing in the third degree with various sentences.
 - Between 2013 and 2015, **civilian witness 4** pled guilty to harassment in the second degree, attempted assault in the third degree, disorderly conduct, attempted contempt in the second degree, criminal trespass in the third degree, and criminal possession of a controlled substance in the third degree. He received various sentences.
 - On January 9, 2004, **civilian witness 3** pled guilty to petty larceny and was conditionally released.
 - **civilian witness 1** has no prior criminal convictions.

Civilian and Officer CCRB Histories

- civilian witness 2 civilian witness 4 and civilian witness 3 have no other previous CCRB cases.
- civilian witness 1 had one previous complaint filed on his behalf with the CCRB, Case # [REDACTED]. In this case, allegations of force, and abuse of authority were exonerated and offensive language unfounded.

- PO Kendo Kinsey has been a member of service for ten years. [REDACTED]. In case #201102302, an allegation of discourtesy was substantiated against PO Kinsey. [REDACTED]

Potential Issues

- The investigation was unable to obtain a statement from civilian witness 3 civilian witness 3 declined to speak to the CCRB while in custody at Manhattan Detention Center.

Findings and Recommendations

Subject Officer Identification

While it is undisputed that Sgt. John Keane made the decision to remove civilian witness 1 civilian witness 4 and civilian witness 3 to the 32nd Precinct stationhouse, he made this decision based on information he received from PO Kinsey and PO Pagan-Merritt. PO Kinsey and PO Pagan-Merritt had already detained the group prior to their supervisor's arrival and as such the detainment allegation is pleaded to them.

civilian witness 2 stated that an unidentified officer patted him down and searched his pockets on the direction of PO Pagan-Merritt. However by civilian witness 4 and PO Pagan-Merritt's accounts, it was determined that PO Pagan-Merritt frisked civilian witness 2

The officer involved in removing civilian witness 3 from civilian witness 1 car, and placing him in a chokehold could not be identified. civilian witness 3 refused to participate in the investigation. civilian witness 2 and civilian witness 1 both described this officer as a burly white male with

brownish-blond hair. They did not know if the officer was in uniform or plainclothes. [redacted] civilian w

[redacted] indicated that the officer was in plainclothes and had a tattoo on his leg.

Sgt. Martinez spoke to [redacted] civilian witness 3 at the stationhouse prior to his being transported to Manhattan Central Booking and did not notice any physical injury on [redacted] civilian witness 3. He stated [redacted] civilian witness 3 did not mention any physical injury or any officer grabbing his throat in his interaction.

A review of the event unit information (Board Review, NYPD Documents) revealed no plainclothes units responding to the incident. Patrol Sector C, responded to this incident, along with a supervisor. Roll call identified these officers as PO Licata and PO Gomez and the supervisor as Sergeant Keane and his operator, PO Usher. PO Licata and PO Gomez are both Hispanic and PO Gomez is a female, therefore they do not match the description provided by the civilians. The two officers Sgt. Gallicchio identified as working with him on the incident date, PO Puntini and PO Diviesti did not match the description provided by the civilians, as both have dark, thinning hair, a slim build, and both were in uniform. A review of the roll call revealed nine male officers in plainclothes working on the incident date. Of these, only one matched the description provided by the civilians sufficiently as a husky, white male officer in his thirties, in plainclothes with blondish- brown hair. The other officers were black or Asian males, while the white and light skinned officers were significantly older, bald, or dark haired.

Sgt. Gallicchio indicated that he attempted to pull [redacted] civilian witness 3 by the arm from the vehicle and he refused to get out. Sgt. Gallicchio ordered two officers standing nearby to remove him from the vehicle. However, Sgt. Gallicchio could not recall who these officers were, whether they were in uniform or not, but that he did not witness a chokehold or discourtesy at any time. Additionally, Sgt. Gallicchio did not fit the description provided by the civilians of the subject officer of this allegation since he is 5'9" tall, bald and in uniform. Furthermore, [redacted] civilian witness 1 attributed specific allegations to Sgt. Gallicchio.

Of the officers working on the incident date, the investigation identified Sgt. Aman as most closely matching the description provided by the civilians of the subject officer. Sgt. Sean Aman was interviewed at the CCRB on January 21, 2016 (See Board Review, MOS Statements). Sgt. Aman did not recall this incident or any details of it, and did not recall what he was doing on October 10, 2016. No documents reviewed place Sgt. Aman at the scene and furthermore, Sgt. Aman does not have any tattoos. An attempt to have [redacted] civilian witness 2 and [redacted] civilian witness 1 view a photo array was unsuccessful. As such, allegations G and H are pleaded to "an officer."

While it is undisputed that a vehicle search took place, neither the civilians nor the officers could identify who conducted the search. By all accounts PO Kinsey and PO Pagan-Merritt were not involved in the search of the vehicle. None of the interviewed officers could identify the officers that searched the vehicle. As such, Allegation I is pleaded to "officers."

Sgt. Keane had no independent recollection of being present for the strip search; however he matched the description provided by [redacted] civilian witness 2 of an older white male, approximately 6'1" tall, with an average build in uniform, with stripes on his sleeves and gray hair. Sgt. Keane is a [redacted] year old white male, 5'10" tall, and 175 lbs., with gray hair. Furthermore, PO Kinsey confirmed that Sgt. Keane authorized the strip search and conducted it. Sgt. Gallicchio stated he was present

for the strip search, and said “Search’em” [sic] just prior to the strip search being conducted; neither sergeant took credit for authorizing the strip search. The Command Log entry related to **civilian witness 2** arrest confirmed that a strip search was authorized. While Sgt. Keane’s signature is beneath it, he indicated it was not his handwriting. The investigation determined that both sergeants participated in the strip search and as such, Allegations L and M are pleaded to both Sgt. Keane and Sgt. Gallicchio.

Allegations not pleaded

- **Discourtesy-** **civilian witness 4** and **civilian witness 1** alleged that PO Pagan-Merritt uttered the expletive “fuck” in different contexts to **civilian witness 2** however, did not allege this took place. As such it is not pleaded.

Allegation A- Abuse of Authority: At various locations, PO Melanie Pagan-Merritt detained **civilian witness 1 **civilian witness 2** and **civilian witness 4****

Allegation B- Abuse of Authority: At various locations, PO Kendo Kinsey detained **civilian witness 1 **civilian witness 2** and **civilian witness 4****

It is undisputed that **civilian witness 2** was illegally parked at a bus stop. **civilian witness 2** was rolling a tobacco cigarette in the driver’s seat. PO Kinsey and PO Pagan-Merritt drove up beside **civilian witness 2** vehicle and stepped out in order to issue a ticket and investigate the contents of **civilian witness 2** rolling papers. The investigation credits that there was a smell of marijuana in the car based on the following factors:

- **civilian witness 4** stated that PO Pagan-Merritt asked if someone was smoking marijuana when she approached the vehicle.
- PO Kinsey and PO Pagan-Merritt testified to a strong odor of marijuana coming from **civilian witness 2** vehicle which they noted as soon as they approached the vehicle.
- Two bags of marijuana were ultimately recovered from **civilian witness 2** at the 32nd Precinct stationhouse.

It is undisputed that PO Pagan-Merritt smelled the odor of marijuana emanating from the vehicle and commented about it, though **civilian witness 2** **civilian witness 1** and **civilian witness 4** denied smoking marijuana. **civilian witness 1** **civilian witness 2** **civilian witness 4** and **civilian witness 3** were asked for identification, removed from the car, frisked and handcuffed. Of the civilians, only **civilian witness 3** refused to provide identification. They were all taken to the 32nd Precinct stationhouse, where they were held for approximately two hours. No marijuana or contraband was discovered during the vehicle search (discussed in Allegation I). **civilian witness 2** was strip searched (discussed in Allegations K and L), resulting in two small bags of marijuana found in his socks. He was issued a summons with regards to the marijuana and a ticket for being parked in a bus lane.

Warrant checks were run on all four civilians at the stationhouse. **civilian witness 4** and **civilian witness 1** were released without an arrest or summons, and **civilian witness 3** was transported to Manhattan Central Bookings as it was discovered he had an open bench warrant.

PO Pagan-Merritt was interviewed on December 29, 2015 (See Board Review, MOS Statements). PO Pagan-Merritt stated that she and PO Kinsey approached **civilian witness 1** vehicle as it was parked by a bus stop and observed **civilian witness 2** rolling a cigarette. As they approached, they noticed a strong smell of marijuana. The four occupants of the vehicle made no other suspicious

movements as the officers approached. PO Pagan-Merritt asked **civilian witness 2** what he was smoking and he showed her his rolling tobacco which was in a bag on the floor of the car by his feet. PO Pagan-Merritt stated that **civilian witness 2** became argumentative, refusing to provide identification. She asked him to step out of the vehicle, followed by the back left passenger, **civilian witness 4**. PO Kinsey asked the front and back right passengers, **civilian witness 1** and **civilian witness 3** for identification, and then asked them to step out of the vehicle. This was done for officers' safety and in order to conduct the investigation of the odor of marijuana. PO Pagan-Merritt also noticed pharmacy bags of prescription medication in the back seat of the car, however she did not recall whether any of the four occupants were questioned regarding the contents of these bags, or if anything was recovered from them. PO Pagan-Merritt explained that the four individuals were taken into custody in order to investigate the possibility of marijuana or drugs in the vehicle. She did not however, search the vehicle or know if the vehicle was searched on the scene. Marijuana was recovered from **civilian witness 2** at the stationhouse, however PO Pagan-Merritt did not know when or how this was recovered, nor did she recall any further searches on any individual or the vehicle.

PO Kinsey was interviewed on January 6, 2016 (See Board Review, MOS Statements). PO Kinsey stated there was no trouble getting identification from **civilian witness 2** or any of the passengers save for **civilian witness 3**. He corroborated that there was a strong odor of marijuana emanating from the vehicle, and that the passengers were asked to step out of the vehicle for officer safety and to investigate the odor of marijuana. PO Kinsey briefly glanced in the vehicle himself, but he did not step in or search it. He did not notice any pharmacy bags in the back seat. PO Kinsey stated that a supervisor at the scene, made the decision to bring the four civilians back to the stationhouse in order to continue the investigation of the source of the marijuana smell there. After the four civilians and **civilian witness 1** vehicle were taken back to the stationhouse, warrant checks were run and the car was searched further. PO Kinsey did not search the vehicle further himself and could not identify officers involved in this search.

Sgt. Keane was interviewed at the CCRB on December 31, 2015 (See Board Review, MOS Statements). Sgt. Keane and Sgt. Gallicchio arrived after the initial stop. Sgt. Keane stated that he was informed by PO Pagan-Merritt and PO Kinsey on his arrival at the location that the driver had been observed rolling a marijuana cigarette. Sgt. Gallicchio was also informed by officers he could not identify that they had been caught with marijuana. Sgt. Keane also stated that identification had not been provided by the civilians. Sgt. Keane and Sgt. Gallicchio stated that there was a crowd of onlookers of at least ten people that were getting progressively closer as the incident progressed. Sgt. Keane made the decision to remove the four civilians to the stationhouse in order to run warrant checks and process the arrests for possession as the crowd led him to not feel safe at the scene.

Sgt. Gallicchio was interviewed on January 21, 2016 (See Board Review, MOS Statements). Sgt. Gallicchio arrived after the initial stop. Sgt. Gallicchio positioned himself between the growing crowd of onlookers on the sidewalk and **civilian witness 1** vehicle to act as crowd control. He was informed at some point during the incident that the four caught rolling a marijuana cigarette by an officer he could not identify. Sgt. Gallicchio made no independent observations about marijuana at the location.

According to *People v. Thompson*, 160 Mic. 2d 579 (Sup.Ct. Kings Co. 1994), officers may detain a suspect on the basis of reasonable suspicion in order to conduct an investigation provided that the detainment is temporary and lasts no longer than necessary (See Board Review, Case Law).

PO Pagan-Merritt and PO Kinsey lawfully stopped [civilian witness 2] for being parked at the bus stop and smelled the odor of marijuana emanating from the vehicle. They made no observations of anyone smoking marijuana nor could they see any marijuana in plain view. They had probable cause to believe that there was marijuana in the vehicle and as discussed in Allegation I, could have searched the vehicle. PO Pagan-Merritt and PO Kinsey did not participate in the car search or establish if there was any marijuana in the vehicle prior to handcuffing and removing all four occupants to the stationhouse. Unidentified officers searched the vehicle at the location with negative results. Yet the occupants continued to be detained at the precinct. The investigation established as discussed in Allegations K and L that the officers subjected [civilian witness 2] to an improper strip search during this detainment which further extended the length of the detainment for all of the occupants. While [civilian witness 3] was held for an outstanding warrant, [civilian witness 1] and [civilian witness 4] were ultimately released with no arrest or summons. [civilian witness 2] was issued two summonses.

The investigation determined that PO Pagan-Merritt and PO Kinsey lacked reasonable suspicion to detain the civilians for as long as they did, and the detainment served strictly exploratory purposes. Therefore, it is recommended that allegations **A** and **B** be closed as **Substantiated**.

Allegation C- Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, PO Melanie Pagan-Merritt frisked [civilian witness 2]

Allegation D- Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan PO Kendo Kinsey frisked [civilian witness 1] and [civilian witness 4]

Allegation E- Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan PO Melanie Pagan-Merritt searched [civilian witness 2]

Allegation F- Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan PO Kendo Kinsey searched [civilian witness 1] and [civilian witness 4]

As discussed above, it is undisputed that when PO Pagan-Merritt and PO Kinsey approached the vehicle, [civilian witness 2] was illegally parked at a bus stop and there was an odor of marijuana emanating from the vehicle. It is undisputed that PO Pagan-Merritt frisked [civilian witness 2] and that PO Kinsey frisked [civilian witness 1] and [civilian witness 4] as they were removed from the vehicle prior to being handcuffed and placed in the patrol car.

In addition to being frisked, [civilian witness 1] [civilian witness 4] and [civilian witness 2] were consistent in alleging that their pockets were searched and in the case of [civilian witness 1] his hat was removed and searched.

PO Pagan-Merritt confirmed that [civilian witness 2] stepped out of the vehicle and was handcuffed. She frisked him for weapons prior to placing him in the patrol car as the officers continued to investigate the odor of marijuana. No decision had yet been made to transport the occupants of

the vehicle to the precinct or to affect their arrests. PO Pagan-Merritt denied that any of the occupants were searched.

PO Kinsey stated that he frisked **civilian witness 1** and **civilian witness 4** once they exited the vehicle. PO Kinsey stated there was no specific reason to believe any of the individuals were carrying weapons and that these frisks were done for the safety of the officers as **civilian witness 2** **civilian witness 4** **civilian witness 1** and **civilian witness 3** were being handcuffed and placed in the RMP while they investigated the odor of marijuana. PO Kinsey denied that any of the occupants were searched. PO Kinsey completed the Stop, Question and Frisk Reports for **civilian witness 1** and **civilian witness 4** (See Board Review, NYPD Documents). Both reports were identical. For the frisk, PO Kinsey listed furtive movements and noted the smell of marijuana coming from the vehicle on both reports. PO Kinsey described the furtive movements as everyone sitting in the car with their heads down, on their cell phones, not paying attention to the officers or what the driver was doing. PO Kinsey did not check of the box for search of person for either of the reports.

According to the *People v. Gamble*, 210 AD 2d 903 (4th Dept. 1994) , where a sufficient basis for detention exists, an officer may conduct a frisk as a routine safety measure preliminary to transporting a suspect in a police vehicle (see Board Review, Case Law).

As per the *People v. Johnson*, NY Slip OP 52096U (3rd Dept. 2009), the smell of marijuana alone is sufficient to provide police with probable cause to search a vehicle and its occupants (see Board Review, Case Law).

PO Pagan-Merritt and PO Kinsey attributed the frisks to a procedural step prior to placing the civilians in their patrol car and denied ever searching them. All the civilians provided consistent testimonies that they were frisked and searched by the officers. The investigation credits the civilians' consistent testimonies that they were frisked and searched. The officers had probable cause to search **civilian witness 2** **civilian witness 1** and **civilian witness 4** due to the odor of marijuana, which is more intrusive than a frisk. It is therefore recommended that **Allegations C, D, E and F** be **Exonerated**.

Allegation G- Force: At West 133rd Street and Lenox Avenue in Manhattan, an officer used a chokehold against **civilian witness 3**

Allegation H- Discourtesy: At West 133rd Street and Lenox Avenue in Manhattan, an officer spoke discourteously to **civilian witness 3**

It is undisputed that **civilian witness 3** was ordered to step out of **civilian witness 1** vehicle and refused to do so. Unidentified officers forcibly removed **civilian witness 3** from the vehicle.

civilian witness 3 refused to provide a statement to the CCRB. **civilian witness 2** **civilian witness 4** and **civilian w** **alleged** that an officer, who had later responded to the scene, placed his hands around **civilian w** **throat**, with one hand placed at the front of his neck and the other on the back while pulling **civilian witness 3** from the vehicle. **civilian witness 2** further alleged that this officer told **civilian w** **to "Get the fuck out of the car."**

PO Pagan-Merritt, PO Kinsey, and Sgt. Keane denied seeing any officer grab **civilian witness 3** by the throat, nor did any officer hear him complain about physical injuries later. As discussed in

the Subject Officer Identification section, the investigation exhausted all means to identify the subject officer to no avail. It is therefore recommended that **Allegations G and H** be closed as **Officer(s) Unidentified**.

Allegation I- Abuse of Authority: At West 133rd Street and Lenox Avenue in Manhattan, officers searched the car in which civilian witness 1, civilian witness 3, civilian witness 4 and civilian witness 2 were occupants.

It is undisputed that there was an odor of marijuana emanating from the vehicle. It is undisputed that officers searched civilian witness 1 vehicle.

As discussed in the subject officer identification section, civilian witness 2, civilian witness 4 and [redacted] could not identify the officers that searched their vehicle, but all indicated that neither PO Pagan-Merritt nor PO Kinsey searched the vehicle. civilian witness 2 and civilian witness 4 stated that once they were removed from the car they saw officers looking into the center console and under the seats of the car, without recovering any contraband. civilian witness 1 saw officers in his car but could not see what they were doing.

PO Pagan-Merritt and PO Kinsey both denied searching the vehicle. PO Pagan-Merritt denied witnessing the search of the vehicle and PO Kinsey indicated that it was searched at the scene but he did not recall who conducted the search.

Sgt. Keane could not recall if the vehicle was searched on the scene, or even removed to the stationhouse.

According to *People v. Johnson*, NY Slip Op 52096U (Sup. Ct., Queens Co. 2009), “The smell of marijuana alone is sufficient to provide police who are trained and experienced in the use of marijuana, with probable cause to search a vehicle and its occupants (See Board Review, Case Law.”

As discussed within Allegations A and B, the investigation credits that there was an odor of marijuana emanating from the car. While the investigation could not identify the officers involved, a vehicle search in this instance was lawful under these circumstances. As such, it is recommended **Allegation I** be closed as **Exonerated**.

Allegation J– Discourtesy: At the 32nd Precinct Stationhouse, Sgt. Alfred Gallicchio spoke discourteously to civilian witness 1

Allegation N- Discourtesy: At the 32nd Precinct Stationhouse Sgt. Isaias Martinez spoke discourteously to civilian witness 1

civilian witness 1 alleged that at the stationhouse, when he asked what he was being arrested for and why he had been taken to the stationhouse, Sgt. Gallicchio told him to “Shut the fuck up.” Later, as he was waiting to file a complaint Sgt. Martinez told him to “Get the fuck out” of the stationhouse. civilian witness 2 and civilian witness 4 did not make these allegations in their statements and further attempts to contact them to establish if they witnessed this were unsuccessful.

Sgt. Gallicchio was interviewed on January 21, 2016. Sgt. Martinez was interviewed on January 19, 2016 (See Board Review, MOS Statements). Sgt. Gallicchio denied every using any

profanities in his interaction with **civilian witness 1** at the stationhouse. He denied using any profanities in his interaction with **civilian witness 1**, **civilian witness 2** and **civilian witness 4**. Sgt Keane and PO Kinsey also denied hearing any officer use profanities during the interaction.

Absent additional testimony, the investigation was unable to determine by a preponderance of evidence whether any of the alleged discourtesies occurred. Therefore it is recommended that **Allegation J** and **N** be **closed** as unsubstantiated.

Allegation K- Abuse of Authority: At the 32nd Precinct Stationhouse, Sgt. John Keane threatened **civilian witness 2 with a taser.**

civilian witness 2 alleged that when he was taken to a secluded area in the stationhouse and told he would be strip searched, he stated “I don’t comply with a strip search.” He was still in handcuffs at this point. Sgt. Keane pointed a taser at him and told him that if he resisted he would be tased. After this, **civilian witness 2** offered no further protest.

civilian witness 4 and **civilian witness 1** were not present for the strip search, however **civilian witness 1** stated that **civilian witness 2** had informed him of being threatened with a taser by an officer after his strip search. **civilian witness 4** did not mention this.

Sgt. Keane and did not recall a strip search being conducted on **civilian witness 2** or being present for it. He further denied threatening **civilian witness 2** with a taser at the stationhouse. PO Kinsey and Sgt. Gallicchio denied witnessing any officer threaten **civilian witness 2** with a taser.

Absent additional testimony, the investigation was unable to determine by a preponderance of the evidence whether the alleged threat occurred. Therefore it is recommended that **Allegation K** be closed as **Unsubstantiated**.

Allegation L- Abuse of Authority: At the 32nd Precinct Stationhouse, Sgt. Alfred Gallicchio strip searched **civilian witness 2**

Allegation M- Abuse of Authority: At the 32nd Precinct Stationhouse, Sgt. John Keane strip searched **civilian witness 2**

It is undisputed that **civilian witness 2** was strip searched at the 32nd Precinct Stationhouse. In the course of this strip search, two bags of marijuana were found in each of **civilian witness 2** socks. **civilian witness 2** was ultimately released with a traffic ticket for being parked at the bus stop and a summons for unlawful possession of marijuana.

civilian witness 2 alleged that when he arrived at the stationhouse, PO Pagan-Merritt said multiple times that he needed to be strip searched. **civilian witness 2** was brought in handcuffs to a separate area of the stationhouse by Sgt. Keane, PO Kinsey, and a third officer, identified by the investigation as Sgt. Gallicchio. **civilian witness 2** was uncuffed and proceeded to remove clothing. **civilian witness 2** was asked to remove his shirt, his pants, his undergarments, and when naked he was asked to squat. He stated that the last articles of clothing the officers had him remove were his socks, where the bags of marijuana were found. After this he was given his clothes and instructed to get dressed.

Sgt. Keane did not recall any supervisor authorizing the strip search of **civilian witness 2** and did not recall participating in his strip search. When presented with the Command Log entry of the strip

search entry for [civilian witness 2] Sgt. Keane indicated it was not his handwriting, which could be found below that entry. The entry did not have a signature or supervisor name. Sgt. Keane could not recall any independent observations of [civilian witness 2] once he arrived at the precinct which would have supported a strip search.

Sgt. Gallicchio stated that he noticed [civilian witness 2] fidgeting while at the front desk of the stationhouse. He described this fidgeting as moving his hands around the back of his pants and walking on the balls of his feet. Sgt. Gallicchio observed this motion for at least a minute or so. Sgt. Gallicchio discussed this fidgeting with an officer he couldn't identify who transported [civilian witness 2] to the stationhouse. This officer indicated to Sgt. Gallicchio that [civilian witness 2] made similar movements in the patrol car on the way to the stationhouse. Sgt. Gallicchio said "Search'em" [sic]. However, he did not recall if he was the supervisor that authorized the strip search. He did not recall discussing [civilian witness 2] fidgeting or a strip search with other supervisors. He did not recall who else was present during the strip search but that he participated.

PO Kinsey confirmed that he participated in the strip search and he attributed the search on account of the smell of marijuana, which lingered specifically around [civilian witness 2] and not the other three civilians at the stationhouse. PO Kinsey believed that it was Sgt. Keane who authorized the strip search but was not certain. PO Kinsey did not recall Sgt. Gallicchio's participation. PO Kinsey transported [civilian witness 2] to the precinct but observed no physical actions that would have caused him to believe that [civilian witness 2] was concealing narcotics.

PO Pagan-Merritt denied any knowledge of a strip search, stating that as she was a female and would not be involved in a strip search. PO Pagan-Merritt did not observe any physical actions by [civilian witness 2] during transport that would have indicated that he was concealing narcotics on his person.

As per *Patrol Guide Procedure* 208-05, in order to conduct a strip search an officer must possess a reasonable suspicion to believe that a suspect is concealing contraband on their person in a manner that would prevent it from being discovered in a standard search. In *Hartline v Gallo*, 546 F.3d 95; (2d Cir. 2008), the courts ruled that a strip search is improper even in cases when marijuana is recovered from a vehicle and a suspect admits to there being more marijuana in the vehicle (See Board Review, Case Law).

Neither PO Kinsey nor PO Pagan-Merritt corroborated Sgt. Gallicchio's observations of [civilian witness 2]. Even if the investigation credits Sgt. Gallicchio's independent observations, walking on the balls of your feet and moving your handcuffed arms behind you does not rise to reasonable suspicion that [civilian witness 2] was concealing contraband. As for Sgt. Keane, as discussed in the subject officer identification section, the investigation determined that he participated in the strip search. He provided no opposing account of the events. As such, it is recommended that **Allegation L and M** be closed as **Substantiated**.

Squad 4:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date